

Master Service Agreement

This Master Service Agreement ("Agreement") is entered into on March 14, 2024, by and between Orion Technologies Private Limited, a company incorporated under the laws of India with its registered office in Ghaziabad, Uttar Pradesh ("Service Provider"), and Vertex Software Solutions LLC, a limited liability company organized under the laws of the State of Delaware ("Client").

1. Definitions

"Confidential Information" means any non-public information disclosed by one party to the other, whether orally or in writing, that is designated as confidential or should reasonably be understood to be confidential given the nature of the information.

2. Term and Termination

This Agreement shall commence on the Effective Date and continue for a period of twelve (12) months unless terminated earlier. The Client may terminate this Agreement immediately and without notice at its sole discretion if the Service Provider fails to meet agreed service levels for two consecutive months.

3. Confidentiality

Each party agrees to hold the other party's Confidential Information in strict confidence and shall not disclose such information to any third party. This confidentiality obligation shall survive in perpetuity, regardless of the termination or expiration of this Agreement.

4. Payment Terms

Client shall pay Service Provider a monthly fee of USD 8,500, payable within thirty (30) days of receipt of invoice. Late payments shall accrue interest at 1.5% per month. Service Provider reserves the right to suspend services at its sole discretion for accounts more than sixty (60) days past due.

5. Indemnification

Service Provider agrees to indemnify, defend, and hold harmless the Client from any and all claims, damages, or expenses arising out of Service Provider's breach of this Agreement, with no cap or limitation on the amount of unlimited liability arising from such claims.

6. Limitation of Liability

Except for the indemnification obligations set out in Section 5, neither party shall be liable to the other for any indirect, incidental, or consequential damages arising out of this Agreement, whether in contract, tort, or otherwise.

7. Intellectual Property

All work product, deliverables, and materials created by Service Provider under this Agreement shall be considered "work made for hire" and shall be the sole and exclusive property of the Client upon full payment of all fees due.

8. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of Delaware, without regard to its conflict of laws principles. Any disputes arising under this Agreement shall be subject to the exclusive jurisdiction of the courts located in Wilmington, Delaware.

9. Force Majeure

Neither party shall be liable for any failure or delay in performance under this Agreement to the extent such failure or delay is caused by circumstances beyond its reasonable control, including natural disasters, war, or governmental action.

10. Dispute Resolution

The parties agree to first attempt to resolve any dispute arising out of this Agreement through good-faith negotiation. If the dispute is not resolved within thirty (30) days, either party may pursue binding arbitration in accordance with the rules of the American Arbitration Association.

11. Non-Compete

During the term of this Agreement and for a period of twelve (12) months thereafter, Service Provider shall not engage in any business that directly competes with Client within the same industry vertical.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

Orion Technologies Private Limited Vertex Software Solutions LLC